

25VECV03335 25VECV03335

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Case Number: 25VECV03335 Hearing Date: August 24, 2026 Dept: B

Tentative Ruling

Fierro v. Schrage, Case no. 25VECV03335

Hearing date August 24, 2026

Plaintiffs'

Motion to Consolidate

Plaintiffs

Fierro sue defendants Schrage, individually and as trustees of the MC Schrage Family Trust (collectively "Schrage defendants"), Radd, Side, Inc., Compass California, Inc. and Frontgate Real Estate LLC for fraud, breach of contract and breach of fiduciary duty arising out of a rental and option to purchase real property. This matter has been related to the unlawful detainer LASC Case no. 26VECV02151. Plaintiffs move to consolidate the matters. Defendants oppose.

Plaintiffs

offer the declaration of counsel Snyder. Defendants object. Objections 1-2
OVERRULED.

Consolidation

unites separate lawsuits for trial, or pretrial proceedings, where they involve common questions of law or fact, are pending in the same court, and their consolidation would be judicially economical. See Code Civ. Proc.

§1048(a); Sanchez v. Superior Court (1988) 203 Cal.App.3d 1391, 396.

Consolidation has been found to be an abuse where consolidation would delay an already-set trial or adversely affect the rights of any party. See Feliner

v. Steinbraum (1955) 132 Cal.App.2d 509.

Plaintiffs

argue the two cases involve intertwined issues: (1) plaintiffs' right to purchase the property under a valid option agreement; (2) the effect of alleged rent defaults; and (3) Schrage defendants' ability to convey marketable title. Plaintiffs argue these issues concern the right to possession element of the UD matter, and separate trials raise the risk of inconsistent rulings and judicial inefficiency.

The

Schrage defendants offer three opposition filings, arguing consolidating this action with the UD improperly denies them the statutory expedited timeline in the UD matter. The Schrage defendants argue this action contains additional parties and questions of law not at issue in the UD action. The Schrage defendants argue consolidation would delay trial, set for 9/8/26.

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UD is a summary proceeding and may not generally be tried with other causes of action. See *Berry v. Society of Saint Pius X* (1999) 69 Cal.App.4th 354, 363. However, California courts have allowed UD matters to be stayed or consolidated with other cases when substantial questions of ownership and the risk of irreparable injury gravitated in favor of resolving the issues in a single trial. See *Mehr v. Superior Court* (1983) 139 Cal.App.3d 1044.

Plaintiffs

argue California courts have held that when an unlawful detainer action and related unlimited civil case concerning title to property rights are pending simultaneously, the trial court may stay the unlawful detainer case or consolidate the actions to ensure those issues are fully and fairly adjudicated. See *Martin-Bragg v. Moore* (2013) 219 Cal.App.4th 367, 385. This argument is unavailing; *Martin-Bragg*, supra, merely recognizes that the court must select a procedure that fairly accommodates the nature of the asserted title dispute while protecting the landlord's legitimate right to avoid unjustified delay of the UD matter. *Id.* at 385-393.

Trial

in the UD matter is set for 9/8/26. Plaintiff's earliest proposed consolidated trial date is "four to six months after discovery is commenced and completed." *Mtn.*, 11:14. This is an unreasonable delay where title is undisputably held by

the Schrage defendants. Plaintiffs' arguments of complex title issues turn on whether plaintiffs had a right to exercise an option contract; there are no allegations or facts in the record showing plaintiffs hold, or ever held, title to the property.

Consolidation

would necessarily delay trial on the UD matter, filed 4/10/26, by at least 4 months. An 8-month filing to trial date where the alleged nonpayment of rent remains ongoing and where possession remains at issue impermissibly affects the Schrage defendants' rights as the property owners. Consolidation is DENIED.